

INFORMATION

New Business or Renewal:	New Business to AssuredPartners & Agent
Expiring Policy Number:	N/A
Incumbent Insurer:	N/A
Incumbent Renewal Position:	Not been advised
Expiring Limit:	N/A
Expiring Deductible:	N/A
Expiring Premium:	N/A
Incumbent Renewal Premium:	N/A
Agent:	VaGo Assure Inc.
Agent's Email Address:	Commercial VagoAssure <commercial@vagoassure.com>
Agent's Address:	1955 CH. From La Côte-de-Liesse suite 201 Saint-Laurent, Quebec, Canada, H4N 3A8
Name of Insured:	Loto-Québec (Québec crown corporation) and related entities
Insured's Address:	500 Sherbrooke Ouest, Montréal, QC H3A 3G8
Insured's Professional Service:	Province-wide lottery and gaming operations, including major casino and gaming facilities
Risk Classification:	Casinos - Licensed
Website:	https://loteries.lotoquebec.com/
Years in business:	57
Years of experience:	
Payroll:	
Total Turnover - Last Year:	
Total Turnover - Estimate:	\$1,340,000,000.00
Canada Turnover:	\$1,340,000,000.00
USA Turnover:	
Other Territory Turnover:	
Sub-contracted Costs:	
Sub-contracted Work:	None

Additional Risk Information

Key Locations

- Province-wide lottery and gaming operations, including major casino and gaming facilities.
- Revenues (casino operations): ~CAD 1.343B net revenues (2026–2027 estimate).
- Approx. 4,676 employees (3,335 FT / 1,341 PT); payroll ~CAD 219.0M.

- 1 Avenue du Casino, Montréal, QC H3C 4W7
- 1 Boulevard du Casino, Gatineau, QC J8Y 6W3
- 3 Boulevard du Casino, Gatineau, QC J8Y 6W3
- 1900 Rue de l'Hippodrome, Trois-Rivières, QC G8Z 0A3
- 847 Rue Clémenceau, Québec, QC G1C 2K6
- 5645 Avenue Pierre-de-Coubertin, Montréal, QC H1N 1R1

The officers, directors, employees and all other persons in the service of the Company, as well as:

Quebec Lottery Society; Casiloc Inc.;
Société des casinos du Québec inc.; Société des
établissements de jeux Québec inc.; Lotim inc.;
Nter Technologies, a subsidiary of Loto-Québec;
9059-3849 Québec inc.;
Social Club of Employees of Casino de Charlevoix Inc.;
Social Club of the Quebec Bingo Society Inc.;
Social Club Société des salons de jeux du Québec inc.; Loto Québec Christmas Social Fund inc.;
Montreal Casino Social Club; Lac Leamy Casino Social Club; Hilton Lac Leamy Social Club;
Social clubs for employees of Loto-Québec and its subsidiaries;
Social club of the Mont-Tremblant Casino.

LLOYD'S**EXCESS / UMBRELLA LIABILITY INSURANCE**

Effected with certain Lloyd's Underwriters ("**the Insurer**") through Lloyd's Approved Coverholder ("the Coverholder") **AssuredPartners London**, The Walbrook Building, 25 Walbrook, London, EC4N 8AW

QUOTE - NO COVER GIVEN - TERMS OPEN 30 DAYS**THIS POLICY CONTAINS A CLAUSE WHICH MAY LIMIT THE AMOUNT PAYABLE****DECLARATION****UMR:** B1525**Policy Number:****Intermediary:** VaGo Assure Inc.**Intermediary Address:** 1955 CH. From La Côte-de-Liesse suite 201 Saint-Laurent, Quebec, Canada, H4N 3A8**Type:** EXCESS / UMBRELLA LIABILITY INSURANCE**Insured's Name:** Loto-Québec (Québec crown corporation) and related entities

and/or their subsidiary, affiliated and/or controlled companies including co-ventures of a joint venture for which the first named insured is operator, and/or others for which the first named insurable interest, and/or have agreed to insure, all as now exists or may hereafter be constituted or acquired

Insured's Address: 500 Sherbrooke Ouest, Montréal, QC H3A 3G8**Application Form Date:** N/A**Policy Period****From:** 01 April 2026**To:** 01 April 2027

both days as at local standard time at the address of the Insured.

Interest: As per Policy Wording**Professional Services:** Province-wide lottery and gaming operations, including major casino and gaming facilities**Territory:** Canada**Choice of Law & Jurisdiction:** This insurance shall be governed by and construed in accordance with the law of Canada and each party agrees to submit to the exclusive jurisdiction of the Canada.**Slip Leader:** N/A - NO COVER GIVEN

TERMS & CONDITIONS

Wording: APL Canada (Inc. Quebec) - Excess of Loss Wording (XS0311)

Limits (CAD):

CGL

Required Limit: \$13,000,000

Excess Of

Underlying Limit: \$50,000,000

SIR (CAD):

NIL

Conditions:

LSW1549C Identification of insurer / Action against insurer

Excluding E&O/PI

Drop Down Exclusion

Excluding USA

Gambling Exclusion

Excluding Forcible Ejection

Subjectivities:

If not already provided upon quotation - please provide a signed & dated application form (dated within 30 days of proposed policy inception date). If not provided within 14 days of order noted, underwriters have the right to cancel ab initio.

If quote is required but binding confirmation has been sent to AssuredPartners London after the proposed policy inception date, a signed and dated NCD (No Claims Declaration) must be provided.

For Insureds domiciled in Quebec, terms are subject to sight and acceptance of a satisfactory Bill 96 attestation signed & dated by the Insured, prior to binding.

Premium (CAD): \$11,500.00

Minimum Retained: 25%

Adjustable: N/A

Premium Payment Terms: LSW 3001 90 day Premium Payment Warranty

Taxes payable by Insured and administered by Insurers: None Applicable

Recording, Transmitting & Storing Information: Where AssuredPartners London maintains risk and claim data/information/documents
AssuredPartners London may hold data/information/documents electronically

Insurer Contract Documentation: This document details the contract terms entered into by the insurer(s) and constitutes the contract document.

In respect of Lloyd's Syndicates:

XIS to sign Lloyd's policy, based on Form J (A) NMA2421
Incorporating NMA2419 Lines Clause
Production of Co-insurance Policies to follow suit accordingly

In respect of Bureau Insurance Companies:

XIS to sign Company Policy, based on Policy Form IIC3
Incorporating NMA2419 Lines Clause (amended by the deletion of the word "table" and its replacement with words "schedule of Companies proportions")
Production of Co-Insurance Policies to follow suit accordingly.

In respect of Non-Bureau Companies:

Each Non-Bureau Insurance Company to sign Company Policy,
Based on Policy form Companies Collective Policy (CP2)

Incorporating NMA2419 Lines Clause (amended by the deletion of the word "table" and its replacement with the words "schedule of Companies proportions")

Signing Provisions:

In the event that the written lines hereon exceed 100% of the order, any lines written "to stand" will be allocated in full and all other lines will be signed down in equal proportions so that the aggregate signed lines equal to 100% of the order without further agreement of any of the (re) insurers.
However:

- a) in the event that the placement of the order is not completed by the commencement date of the period of insurance then all lines written by that date will be signed in full;
- b) the signed lines resulting from the application of the above provisions can be varied, before or after the commencement date of the period of insurance, by the documented agreement of the (re)insured and all (re)insurers whose lines are to be varied. The variation to the contracts will take effect only when all such (re)insurers have agreed, with the resulting variation in signed lines commencing from the date set out in that agreement.

The insurance contract consists of this Declaration page as well as all coverage wordings, riders, or endorsements that are attached hereto.

IDENTIFICATION OF INSURER / ACTION AGAINST INSURER - LSW1549C

This insurance has been effected in accordance with the authorization granted to the Coverholder by the Underwriting Members of the Syndicates whose definitive numbers and proportion are shown in the Table attached to the Agreement No:

B1525

(hereinafter referred to as "the Underwriters"). The Underwriters shall be liable hereunder each for his own part and not one for another in proportion to the several sums that each of them has subscribed to the said Agreement.

In any action to enforce the obligations of the Underwriters they can be designated or named as "Lloyd's Underwriters" and such designation shall be binding on the Underwriters as if they had each been individually named as defendant. Service of such proceedings may validly be made upon the Attorney In Fact in Canada for Lloyd's Underwriters, whose address for such service is Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930, P.O. Box 51 Toronto, Ontario M5J 2J2.

NOTICE

Any notice to the Underwriters may be validly given to:

VaGo Assure Inc.
1955 CH. From La Côte-de-Liesse suite 201 Saint-Laurent, Quebec, Canada, H4N 3A8

In witness whereof this policy has been signed in London, England as authorized by the Underwriters, by AssuredPartners London

Per: Lloyd Bender

Dated: 03 February 2026

The Insured is requested to read this policy, and if incorrect, return it immediately for alteration.

In the event of an occurrence likely to result in a claim under this insurance, immediate notice should be given to the Canadian licenced intermediary whose name and address appear above. All inquiries and disputes are also to be addressed to this intermediary.

Whereas Lloyd's Underwriters have been granted an order to insure in Canada risks under the Insurance companies Act (Canada) and are registered in all provinces and territories in Canada to carry on insurance business under the laws of these jurisdictions or to transact insurance in these jurisdictions.

And whereas applicants for insurance coverage in respect of risks located in Canada and Canadian Cedants wish that Lloyd's insurance and reinsurance coverage be provided in a manner that requires Lloyd's Underwriters to vest assets in trust in respect of their risks pursuant to the Insurance Companies Act (Canada);

- a) This contract shall be in force and shall be the governing contract pending the decision by Lloyd's Underwriters' attorney and chief agent in Canada (the "AIF") to confirm coverage in accordance with both the terms and conditions set out in this contract and applicable Canadian law;
- b) The AIF shall confirm Lloyd's Underwriters' coverage by signing in Canada a policy that will contain the terms and conditions set out in this contract (the "Canadian Policy"), and by communicating from Canada the issuance of that policy to the policyholder or his broker;
- c) This contract shall cease to have effect upon the communication by the AIF from Canada of the Canadian Policy to the policyholder or his broker, and the Canadian Policy will replace and supersede this contract.

ERRORS AND OMISSIONS EXCLUSION

It is agreed that this insurance does not apply to liability arising out of any claim made against you caused by or alleged to have been caused by any negligent act, error, or omission of yours or any other person for whose acts you are legally liable for in the conduct of your consulting business.

All other terms and conditions of this policy remain unchanged.

DROP DOWN EXCLUSION

It is hereby understood and agreed that coverage afforded by this policy shall not drop-down to any sub-limited coverages on primary and underlying policies.

USA EXPOSURE EXCLUSION

This policy excludes liability for or arising out of any activity, operation, visits to, exports of goods or other exposure within the United States of America.

Subject otherwise to the terms, Conditions and Exclusions of the Policy.

GAMBLING EXCLUSION

It is hereby understood and agreed that the insurance provided by the present policy does not apply to or provide coverage for any "personal injury", "property damage", "advertising liability" or any other damage, loss or cost of any kind whatsoever caused by or resulting from any of the following circumstances regardless of any other occurrence, cause or event, which have contributed concurrently or in any way from losses resulting from:

- a) Any Failure of any insured to bar or prohibit any casino patron from continuing to gamble;
- b) Any allegations that a casino patron sustained loss by reason of addiction to or otherwise being unable to terminate gambling activity;
- c) The failure of any insured to warn a casino patron of the dangers potentially arising from the gambling activity;and
- d) Any insured encouraging, by any means, a casino patron to engage in gambling activity .

ALL OTHER TERMS & CONDITIONS REMAIN UNCHANGED.

FORCIBLE EJECTION EXCLUSION

It is hereby agreed that the following is added to the EXCLUSIONS:

This policy does not apply to claims arising out of:

- a) the ejection of persons;
- b) the refusal of entry to the premises; or
- c) the refusal of service.



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XS0311 – Follow Form Wording

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COMMERCIAL EXCESS LIABILITY POLICY – XS0311 – Follow Form Wording

POLICY PROVISIONS

Throughout this policy the words "you" and "your" refer to the Named Insured shown in the Declarations. The words "we", "us" and "our" refer to the company providing this insurance.

The word "insured" means any person or organization qualifying as such in the "first underlying insurance" and includes the Named Insured .

Other words and expressions that appear in quotations marks have special meaning. Refer to Section 4. – Definitions.

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine rights, duties and what is and is not covered.

1. INSURING AGREEMENT:

We will pay on behalf of the insured, "loss" insured by the terms and provisions of the "first underlying insurance" policy (except for the Limits of Liability and defence provisions, if any). The insurance afforded by this policy shall apply only in excess of and after all "underlying limits of insurance" have been exhausted. The insurance afforded by this policy shall apply only to "loss" due to bodily injury, property damage or an offense that occurs during the policy period.

The terms and provisions of the "first underlying insurance" are made part of this policy, except with respect to:

- A. Any contrary provision contained in this policy; or
- B. Any provision in this policy for which a similar provision is not contained in the "first underlying insurance"; in which case the provisions of this policy will apply.

Notwithstanding anything to the contrary contained above, if the "first underlying insurance" does not cover "loss" for reasons other than exhaustion of an aggregate limit of insurance by payment of claims, then we will not cover such "loss".

The amount we will pay is limited as described in Section 2. LIMITS OF INSURANCE.

2. LIMITS OF INSURANCE:

- A. The Limits of Insurance shown in the Declarations and the rules below fix the most we will pay regardless of the number of:
 - (1) Insureds;
 - (2) Claims made or "actions" brought; or
 - (3) Persons or organizations making claims or bringing "actions".
- B. The Limits of Insurance of this policy will only apply in excess of the "underlying limits of insurance".
- C. The Aggregate Limit is the most we will pay for the sum of all "loss"
 - (1) arising out of the Products - Completed Operations Hazard as defined in the "first underlying insurance", or
 - (2) arising out of any coverage contained in an "underlying insurance" if such coverage is subject in such "underlying insurance" to an aggregate limit of liability for all insured damages.
- D. Subject to C. above, the Each Occurrence Limit is the most we will pay for the sum of all "loss" arising out of any one occurrence.

The Aggregate Limit, as described in Paragraph C. above, applies separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the Declarations, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.

For the purpose of determining the limits of insurance for this policy, all "loss" due to bodily injury, property damage or an offense with respect to any one person or organization will be considered as arising out of one occurrence.

3. EXCLUSIONS:

This Insurance does not apply to and does not cover:

A. ABUSE

- (1) Any "loss" arising directly or indirectly from "abuse" committed or alleged to have been committed by an insured, including the transmission of disease arising out of any act of "abuse".
- (2) Any "loss" based on your practices of employee hiring, acceptance of volunteer workers or supervision or retention of any person alleged to have committed "abuse".

- (3) Any "loss" alleging knowledge by an insured of, or failure to report, the alleged "abuse" to the appropriate authority(ies).

B. ASBESTOS

Any "loss" related to or arising from any actual or alleged liability for any legal remedy of any kind whatsoever (including but not limited to damages, interest, mandatory or other injunctive relief, statutory orders or penalties, legal or other costs, or expenses of any kind) in respect of actual or threatened loss, damage, cost or expense directly or indirectly caused by, resulting from, in consequence of or in any way involving, asbestos or any materials containing asbestos in whatever form or quantity, including any costs or expenses incurred to prevent, respond to, test for, monitor, abate, mitigate, remove, cleanup, contain, remediate, treat, detoxify, neutralize, assess or otherwise deal with or dispose of asbestos or any materials containing asbestos in whatever form or quantity.

This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the "loss".

C. ELECTRONIC DATA

Any "loss" arising out of the loss of, loss of use of, damage to, corruption of, inability to access, or inability to manipulate "electronic data".

D. ERISA

Any "loss" arising out of any obligation of the insured under the Employees' Retirement Income Security Act (E.R.I.S.A.) and any amendments thereto, or any similar statute.

E. FIRST UNDERLYING INSURANCE EXCLUSIONS

Any "loss" excluded by the "first underlying insurance".

F. FUNGI OR SPORES

- (1) any "loss" arising directly or indirectly from the actual, alleged or threatened inhalation of, ingestion of, contact with, exposure to, existence of, presence of, spread of, reproduction, discharge or other growth of any "fungi" or "spores" however caused, including any costs or expenses incurred to prevent, respond to, test for, monitor, abate, mitigate, remove, cleanup, contain, remediate, treat, detoxify, neutralize, assess or otherwise deal with or dispose of "fungi" or "spores";
- (2) Any "loss" arising directly or indirectly from any supervision, instructions, recommendations, warnings, or advice given or which should have been given in connection with (1) above; or
- (3) Any "loss" arising directly or indirectly from any obligation to pay damages, share damages with or repay someone else who must pay damages because of such injury or damage referred to in (1) or (2) above.

This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the "loss".

G. NUCLEAR ENERGY LIABILITY

- (1) Any "loss" for liability imposed by or arising from any nuclear liability act, law or statute, or any law amendatory thereof;
- (2) Any "loss" with respect to which an insured under this policy is also insured under a contract of nuclear energy liability insurance (whether the insured is unnamed in such contract and whether or not it is legally enforceable by the insured) issued by the Nuclear Insurance Association of Canada or any other insurer or group or pool of insurers or would be an insured under any such policy but for its termination upon exhaustion of its limit of liability;
- (3) Any "loss" resulting directly or indirectly from the "nuclear energy hazard" arising from:
 - (a) The ownership, maintenance, operation or use of a "nuclear facility" by or on behalf of an insured;
 - (b) the furnishing by an insured of services, materials, parts or equipment in connection with the planning, construction, maintenance, operation or use of any "nuclear facility";
 - (c) the possession, consumption, use, handling, disposal or transportation of "fissionable substances", or of other "radioactive material" (except radioactive isotopes, away from a nuclear facility, which have reached the final stage of fabrication so as to be useable for any scientific, medical, agricultural, commercial or industrial purpose) used, distributed, handled or sold by an insured.

This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the "loss".

H. POLLUTION

- (1) Any "loss" arising out of the actual, alleged or threatened spill, discharge, emission, dispersal, seepage, leakage, migration, release or escape of "pollutants":
 - (a) At or from any premises, site or location which is or was at any time owned or occupied by, or rented or loaned to, any insured. However, this subparagraph does not apply to:
 - (i) "Loss" if sustained within a building and caused by smoke, fumes, vapour or soot from equipment used to heat, cool or dehumidify the building, or equipment that is used to heat water for personal use, by the building's occupants or their guests;
 - (ii) "Loss" for which you may be held liable, if you are a contractor and the owner or lessee of such premises, site or location has been added to your policy as an additional insured with respect to your ongoing operations performed for that additional insured at that premises, site or location and such premises, site or location is not and never was owned or occupied by, or rented or loaned to, any insured, other than that additional insured; or
 - (iii) "Loss" arising out of heat, smoke or fumes from a "hostile fire";
 - (b) At or from any premises, site or location which is or was at any time used by or for any insured or others for the handling, storage, disposal, processing or treatment of waste;
 - (c) Which are or were at any time transported, handled, stored, treated, disposed of, or processed as waste by or for:
 - (i) Any insured; or
 - (ii) Any person or organization for whom you may be legally responsible; or
 - (d) At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations if the "pollutants" are brought on or to the premises, site or location in connection with such operations by such insured, contractor or subcontractor. However, this subparagraph does not apply to:
 - (i) "Loss" arising out of the escape of fuels, lubricants or other operating fluids which are needed to perform the normal electrical, hydraulic or mechanical functions necessary for the operation of mobile equipment that is not an "automobile" or its parts, if such fuels, lubricants or other operating fluids escape from a mobile equipment part designed to hold, store or receive them. This exception does not apply if the "loss" arises out of the intentional discharge, dispersal or release of the fuels, lubricants or other operating fluids, or if such fuels, lubricants or other operating fluids are brought on or to the premises, site or location with the intent that they be discharged, dispersed or released as part of the operations being performed by such insured, contractor or subcontractor;
 - (ii) "Loss" sustained within a building and caused by the release of gases, fumes or vapours from materials brought into that building in connection with operations being performed by you or on your behalf by a contractor or subcontractor; or
 - (iii) "Loss" arising out of heat, smoke or fumes from a "hostile fire".
 - (e) At or from any premises, site or location on which any insured or any contractors or subcontractors working directly or indirectly on any insured's behalf are performing operations if the operations are to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants".
- (2) any "loss" arising out of any:
 - (a) Request, demand, order or statutory or regulatory requirement that any insured or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, "pollutants"; or
 - (b) Claim or "action" by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, "pollutants".

However, this Section (2) does not apply to liability for damages because of property damage that the insured would have in the absence of such request, demand, order or statutory or regulatory requirement, or such claim or "action" by or on behalf of a governmental authority.

I. TERRORISM

Any "loss" arising directly or indirectly, in whole or in part, out of "terrorism" or out of any activity or decision of a government agency or other entity to prevent, respond to or terminate "terrorism". This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the "loss".

J. WAR RISKS

Any "loss" arising directly or indirectly, in whole or in part, out of war, invasion, act of foreign enemy, hostilities (whether war be declared or not), civil war, rebellion, revolution, insurrection or military power. This exclusion applies regardless of any other contributing or aggravating cause or event that contributes concurrently or in any sequence to the "loss"

4. DEFINITIONS

- A. "Abuse" means any act or threat involving molestation, harassment, corporal punishment or any other form of physical, sexual or mental abuse.
- B. "Action" means a civil proceeding in which damages because of bodily injury, property damage or an offense to which this insurance applies are alleged. "Action" includes:
 - (1) An arbitration proceeding in which such damages are claimed and to which the insured must submit or does submit with our consent; or
 - (2) Any other alternative dispute resolution proceeding in which such damages are claimed and to which the insured submits with our consent.
- C. "Electronic data" means information, facts or programs stored as or on, created or used on, or transmitted to or from computer software, including systems and applications software, hard or floppy disks, CD-ROMS, tapes, drives, cells, data processing devices or any other media which are used with electronically controlled equipment.
- D. "First underlying insurance" means the policy or policies scheduled in the Declarations.
- E. "Fissionable substance" means any prescribed substance that is, or from which can be obtained, a substance capable of releasing atomic energy by nuclear fission.
- F. "Fungi" includes, but is not limited to, any form or type of mould, yeast, mushroom or mildew whether or not allergenic, pathogenic or toxigenic, and any substance, vapour or gas produced by, emitted from or arising out of any "fungi" or "spores" or resultant mycotoxins, allergens or pathogens.
- G. "Hostile fire" means one which becomes uncontrollable or breaks out from where it was intended to be.
- H. "Loss" means the sum actually paid or payable in cash in the settlement or satisfaction of losses because of bodily injury, property damage or an offense for which the insured is liable, either by adjudication or compromise with our written consent after making proper deduction for all recoveries and salvages collectible, but excludes all loss expenses and legal expenses including solicitor's fees, court costs, and all salaries of employees and office expenses of the insured, us, or any underlying insurer so incurred. "Loss" shall not include punitive or exemplary damages or the multiplied portion of any multiplied damage award, or criminal or civil fines or penalties imposed by law or matters which are uninsurable under the law pursuant to which this policy shall be construed.
- I. "Nuclear energy hazard" means the radioactive, toxic, explosive, or other hazardous properties of "radioactive material".
- J. "Nuclear facility" means:
 - (1) any apparatus designed or used to sustain nuclear fission in a self-supporting chain reaction or to contain a critical mass of plutonium, thorium and uranium or any one or more of them;
 - (2) any equipment or device designed or used for (i) separating the isotopes of plutonium, thorium and uranium or any one or more of them, (ii) processing or packaging waste;
 - (3) any equipment or device used for the processing, fabricating or alloying of plutonium, thorium or uranium enriched in the isotope uranium 233 or in the isotope uranium 235, or any one or more of them if at any time the total amount of such material in the custody of the insured at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235;
 - (4) any structure, basin, excavation, premises or place prepared or used for the storage or disposal of waste "radioactive material";

and includes the site on which any of the foregoing is located, together with all operations conducted thereon and all premises used for such operations.

- K. "Pollutants" mean any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, odour, vapour, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.
- L. "Radioactive material" means uranium, thorium, plutonium, neptunium, their respective derivatives and compounds, radioactive isotopes of other elements and any other substances which may be designated by any nuclear liability act, law or statute, or any law amendatory thereof, as being prescribed substances capable of releasing atomic energy, or as being requisite for the production, use or application of atomic energy.
- M. "Spores" includes, but is not limited to, any reproductive particle or microscopic fragment produced by, emitted from or arising out of any "fungi".
- N. "Terrorism" means an ideologically motivated unlawful act or acts, including but not limited to the use of violence or force or threat of violence or force, committed by or on behalf of any group(s), organization(s) or government(s) for the purpose of influencing any government and/or instilling fear in the public or a section of the public.
- O. "Underlying limits of insurance" means the total sum of amounts stated in the Declarations consisting of:
 - (1) Applicable and collectible "underlying insurance"; and
 - (2) The amount for which the insured is legally obligated to pay in the settlement or satisfaction of a claim for which:
 - (a) No "underlying insurance" applies; or
 - (b) "Underlying insurance" applies, but is not collectible, regardless of the reason.
- P. "Underlying insurance" means all policies scheduled in the Declarations including the "first underlying insurance".

5. CONDITIONS

A. BANKRUPTCY:

- (1) Bankruptcy of Insured
Bankruptcy or insolvency of the insured or of the insured's estate will not relieve us of our obligations under this policy.
- (2) Bankruptcy of Underlying Insurer
Bankruptcy or insolvency of any underlying insurer will not relieve us of our obligations under this policy. However, this policy shall not apply as a replacement of such bankrupt or insolvent insurer's obligation and this policy's Limits Of Insurance will apply only in excess to the required "underlying limits of insurance" stated in the Declarations of this policy.

B. CHANGES

This policy contains all the agreements between you and us concerning the insurance afforded. The first Named Insured shown in the Declarations is authorized to make changes in the terms of this policy with our consent. This policy's terms can be amended or waived only by endorsement issued by us and made a part of this policy.

C. CURRENCY:

All limits of insurance, premiums and other amounts as expressed in this policy are in Canadian currency.

D. DEFENCE:

We do not have any obligation to investigate settle or defend any claim made, or "action" brought, or proceedings instituted against the insured.

E. LEGAL ACTION AGAINST US

No action shall lie against us with respect to "loss" unless as a condition precedent thereto the insured shall have fully complied with all the terms of this policy, nor until the amount of the insured's obligation to pay an amount of "loss" in excess of the "underlying limits of insurance" shall have been finally determined either by judgement against the insured after actual trial or by written agreement of the insured, the claimant and us.

F. MAINTENANCE OF UNDERLYING INSURANCE:

The first Named Insured agrees that the "first underlying insurance" policy, and other "underlying insurance" following the terms and provisions of the "first underlying insurance" policy (except for limit of liability and defence provisions, if any), shall be maintained in full effect during the currency of this policy except for any reduction of the aggregate limit or limits contained therein solely by payment of covered claims thereunder. The failure of the first Named Insured to comply with the foregoing shall not invalidate this policy but in the event of such failure we will only be liable to the same extent as if such first Named Insured had complied with this condition.

G. NOTICE OF OCCURRENCE:

Upon the happening of an occurrence reasonably likely to involve us under this policy the insured shall give written notice as soon as practicable to us. Such notice shall contain particulars sufficient to identify the insured, and fullest information available at the time. If legal proceedings are begun the insured shall forward to us each paper therein, or a copy thereof, received by the insured or the insured's representative, together with copies of reports of investigations with respect to such claim proceedings.

H. PAYMENT OF LOSS:

Upon final determination of "loss", we will promptly pay on behalf of the insured the amount of "loss" falling within the terms of this policy.

I. PREMIUMS

The first Named Insured shown in the Declarations:

- (1) Is responsible for the payment of all premiums; and
- (2) Will be the payee for any return premiums we pay.

J. REPRESENTATIONS OR FRAUD

By accepting this policy, you agree:

- (1) The statements in the Declarations are accurate and complete;
- (2) Those statements are based upon representations you made to us;
- (3) We have issued this policy in reliance upon your representations; and
- (4) This policy is void in any case of fraud by you as it relates to this policy or any claim under this policy.

K. TERMINATION

- (1) The first Named Insured shown in the Declarations may terminate this policy by mailing or delivering to us advance written notice of termination.
- (2) Subject to paragraph (3) below, we may terminate this policy by giving to the first Named Insured
 - (a) 5 days written notice of termination personally delivered, or
 - (b) 15 days notice of termination by registered mail if termination is for non-payment of premium, or
 - (c) 60 days notice of termination by registered mail if termination is for any other reason.

Registered mail termination takes effect 15 or 60 days after receipt of the letter by the post office to which it is addressed, depending upon the reason for termination.

- (3) To the extent that the Civil Code of the Province of Quebec is applicable to this policy General Conditions and Provisions as set out in the Civil Code of the Province of Quebec apply. Accordingly, we may terminate this policy by giving to the first Named Insured
 - (a) 15 days notice of termination by registered mail if termination is for non-payment of premium, or
 - (b) 60 days notice of termination by registered mail if termination is for any other reason.

Registered mail termination takes effect 15 or 60 days after receipt of the notice at the last known address of the first Named Insured, depending upon the reason for termination.

- (4) The policy period will end on the date termination takes effect.
- (5) If this policy is terminated, we will send the first Named Insured any premium refund due. If we terminate, the refund will be pro rata. If the first Named Insured terminates, the refund may be less than pro rata. The termination will be effective even if we have not made or offered a refund.

L. TRANSFER OF RIGHTS OF RECOVERY AGAINST OTHERS TO US

If the insured has rights to recover all or part of any payment we have made under this policy, those rights are transferred to us. The insured must do nothing after loss to impair them. At our request, the insured will bring "action" or transfer those rights to us and help us enforce them.

M. TRANSFER OF YOUR RIGHTS AND DUTIES UNDER THIS POLICY

Your rights and duties under this policy may not be transferred without our written consent except in the case of death of an individual Named Insured.

If you die, your rights and duties will be transferred to your legal representative but only while acting within the scope of duties as your legal representative. Until your legal representative is appointed, anyone having temporary custody of your property will have your rights and duties but only with respect to that property.

PREMIUM PAYMENT CLAUSE – LSW3001

Notwithstanding any provision to the contrary within this contract or any endorsement hereto, in respect of non payment of premium only the following clause will apply.

The (Re)Insured undertakes that premium will be paid in full to (Re)Insurers within [90] days of inception of this contract (or, in respect of instalment premiums, when due).

If the premium due under this contract has not been so paid to (Re)Insurers by the [90th] day from the inception of this contract (and, in respect of instalment premiums, by the date they are due) (Re)Insurers shall have the right to cancel this contract by notifying the (Re)Insured via the broker in writing. In the event of cancellation, premium is due to (Re)Insurers on a short rate basis for the period that (Re)Insurers are on risk but the full contract premium shall be payable to (Re)Insurers in the event of a loss or occurrence prior to the date of termination which gives rise to a valid claim under this contract.

It is agreed that (Re)Insurers shall give not less than [90] days prior notice of cancellation to the (Re)Insured via the broker. If premium due is paid in full to (Re)Insurers before the notice period expires, notice of cancellation shall automatically be revoked. If not, the contract shall automatically terminate at the end of the notice period.

If any provision of this clause is found by any court or administrative body of competent jurisdiction to be invalid or unenforceable, such invalidity or unenforceability will not affect the other provisions of this clause which will remain in full force and effect.

LSW3001
September 2008

SERVICE OF SUIT CLAUSE (CANADA) (Action against Insurer)

In any action to enforce the obligations of the Underwriters they can be designated or named as “Lloyd’s Underwriters” and such designation shall be binding on the Underwriters as if they had each been individually named as defendant. Service of such proceedings may validly be made upon the Attorney in Fact in Canada for Lloyd’s Underwriters at: Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930, P.O. Box 51 Toronto, Ontario M5J 2J2. In addition, Quebec Legal proceedings may be served to c/o Blake, Cassels & Graydon LLP, One Place Ville Marie, Suite 3000, Montreal, Quebec H3B 4N8.

LMA5028B
15 April 2022

INTENTION FOR AIF TO BIND CLAUSE

Whereas Lloyd’s Underwriters have been granted an order to insure in Canada risks under the Insurance companies Act (Canada) and are registered in all provinces and territories in Canada to carry on insurance business under the laws of these jurisdictions or to transact insurance in these jurisdictions.

And whereas applicants for insurance coverage in respect of risks located in Canada and Canadian Cedants wish that Lloyd’s insurance and reinsurance coverage be provided in a manner that requires Lloyd’s Underwriters to vest assets in trust in respect of their risks pursuant to the Insurance Companies Act (Canada);

- a) This contract shall be in force and shall be the governing contract pending the decision by Lloyd’s Underwriters’ attorney and chief agent in Canada (the “AIF”) to confirm coverage in accordance with both the terms and conditions set out in this contract and applicable Canadian law;
- b) The AIF shall confirm Lloyd’s Underwriters’ coverage by signing in Canada a policy that will contain the terms and conditions set out in this contract (the “Canadian Policy”), and by communicating from Canada the issuance of that policy to the policyholder or his broker;
- c) This contract shall cease to have effect upon the communication by the AIF from Canada of the Canadian Policy to the policyholder or his broker, and the Canadian Policy will replace and supersede this contract.

01/11/11
LMA5180

LLOYD'S UNDERWRITERS' POLICYHOLDERS' COMPLAINT PROTOCOL- LSW1542F

Lloyd's strives to enhance your customer experience with us through superior service and innovative insurance products. We have developed a formal complaint handling protocol in accordance with the Insurance Companies Act of Canada to ensure your concerns as our valued customer are addressed expeditiously by our representatives. This protocol will assist you in understanding the steps we will undertake to help resolve any dispute which may arise with our product or service. All complaints will be handled in a professional manner. All complaints will be investigated, acted upon, and responded to in writing or by telephone by a Lloyd's representative promptly after the receipt of the complaint. If you are not satisfied with our products or services, you can take the following steps to address the issue:

- Firstly, please contact the broker who arranged the insurance on your behalf about your concerns so that he or she may have the opportunity to help resolve the situation.
- If your broker is unable to help resolve your concerns, we ask that you provide us in writing an outline of your complaint along with the name of your broker and your policy number.

Please forward your complaint to:

Lloyd's Underwriters

Attention: Complaints Officer:

Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930, P.O. Box 51 Toronto, Ontario M5J 2J2

Tel: 1-877-455-6937

E-mail: info@lloyds.ca

Your complaint will be directed to the appropriate business contact for handling. They will write to you within two business days to acknowledge receipt of your complaint and to let you know when you can expect a full response. If need be, we will also engage internal staff in Lloyd's Policyholder and Market Assistance Department in London, England, who will respond directly to you, and in the last stages, they will issue a final letter of position on your complaint.

In the event that your concerns are still not addressed to your satisfaction, you have the right to continue your pursuit to have your complaint reviewed by the following organizations:

General Insurance OmbudService (GIO): assists in the resolution of conflicts between insurance customers and their insurance companies. The GIO can be reached at:

Toll free number: 1-877-225-0446

www.giocanada.org

For Quebec clients:

Autorité des marchés financiers (AMF): The regulation of insurance companies in Quebec is administered by the AMF. If you remain dissatisfied with the manner in which your complaint has been handled, or with the results of the complaint protocol, you may send your complaint to the AMF who will study your file and who may recommend mediation, if it deems this action appropriate and if both parties agree to it. The AMF can be reached at

Toll Free: 1-877-525-0337

Québec: (418) 525-0337

Montréal: (514) 395-0311

www.lautorite.qc.ca

If you have a complaint specifically about Lloyd's Underwriters' complaints handling procedures you may contact the FCAC.

Financial Consumer Agency of Canada (FCAC) provides consumers with accurate and objective information about financial products and services, and informs Canadians of their rights and responsibilities when dealing with financial institutions. FCAC also ensures compliance with the federal consumer protection laws that apply to banks and federally incorporated trust, loan and insurance companies. The FCAC does not get involved in individual disputes. The FCAC can be reached at:

427 Laurier Avenue West, 6th Floor, Ottawa ON K1R 1B9

Services in English: 1-866-461-FCAC (3222)

Services in French: 1-866-461-ACFC (2232)

www.fcac-acfc.gc.ca

PROTOCOLE RELATIF AUX PLAINTES DE TITULAIRES DE POLICES DU LLOYD'S - LSW1542F-16

Le Lloyd's s'efforce de rehausser l'expérience client par un service supérieur et des produits d'assurance innovants. Nous avons établi un protocole de traitement des plaintes, comme l'exige la Loi sur les sociétés d'assurance du Canada, afin que les problèmes signalés par nos précieux clients soient traités promptement par nos représentants. Ce protocole vous aidera à comprendre les mesures que nous prendrons dans le but de résoudre tout conflit lié à notre produit ou à notre service. Toutes les plaintes seront traitées de manière professionnelle. Dans tous les cas, une enquête sera faite, des dispositions seront prises et une réponse sera donnée par écrit ou par téléphone par un représentant du Lloyd's peu de temps après la réception de la plainte. Si vous n'êtes pas satisfait de nos produits ou de nos services, voici ce que vous pouvez faire:

- Communiquez d'abord avec votre courtier (celui par l'intermédiaire duquel vous avez souscrit l'assurance) afin qu'il ait l'occasion de régler la question.
- Si votre courtier est incapable de résoudre le problème, veuillez nous exposer votre plainte par écrit, en prenant soin d'indiquer le nom du courtier et votre numéro de police.

Veuillez nous adresser vos plaintes comme suit:

Souscripteurs du Lloyd's

Attention: Responsable des plaintes

Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930, P.O. Box 51 Toronto, Ontario M5J 2J2

Tél. : 1-877-455-6937

CÉ : info@lloyds.ca

Votre plainte sera remise à la personne appropriée pour qu'elle s'en occupe. Cette personne vous écrira dans les deux jours ouvrables suivants pour accuser réception de votre plainte et pour vous dire dans combien de temps une réponse complète devrait vous parvenir. Si nécessaire, la plainte sera aussi transmise au service Policyholder and Market Assistance du Lloyd's, à Londres. Dans ce cas, ce service vous répondra directement et, à la fin du processus, rédigera la lettre exposant notre position finale à l'égard de votre plainte.

Si le problème n'est toujours pas réglé à votre satisfaction, vous avez le droit de continuer à chercher une solution en le soumettant aux organismes suivants:

Le Service de conciliation en assurance de dommages (SCAD) facilite la résolution de conflits opposant des consommateurs et leur assureur. Voici comment le joindre:

Tél. : 1-877-225-0446

www.giocanada.org

Pour les clients du Québec:

L' Autorité des marchés financiers (AMF). – Au Québec, la réglementation des sociétés d'assurance relève de l'AMF. Si vous n'êtes pas satisfait de la manière dont votre plainte a été traitée ou réglée par le Lloyd's, vous pouvez la soumettre à l'AMF. Celle-ci étudiera le dossier et pourra recommander une médiation si elle le juge approprié et si les deux parties y consentent. Voici comment joindre l'AMF:

Québec: (418) 525-0337

Montréal: (514) 395-0311

Autres régions : 1-877-525-0337

www.lautorite.qc.ca

Si votre plainte porte sur le processus de traitement des plaintes employé par les Souscripteurs du Lloyd's, vous pouvez vous adresser à l'Agence de consommation en matière financière du Canada (ACFC).

L'Agence de consommation en matière financière du Canada (ACFC) donne aux consommateurs des renseignements précis et objectifs sur les produits et services financiers et informe les Canadiens au sujet de leurs droits et responsabilités dans leurs rapports avec des institutions financières. Elle surveille aussi la conformité aux dispositions relatives à la protection des consommateurs qui sont prévues dans les lois fédérales applicables aux banques et aux sociétés de fiducie, de prêt et d'assurance constituées en vertu d'une loi fédérale. Voici les coordonnées de l'ACFC:

427, avenue Laurier Ouest, 6e étage, Ottawa ON K1R 1B9

Service en français : 1-866-461-ACFC (2232)

Service en anglais : 1-866-461-FCAC (3222)

www.fcac-acfc.gc.ca

NOTICE CONCERNING PERSONAL INFORMATION

Introduction:

This notice describes how Lloyd's Canada, as a data controller, collects, uses, shares and retains the personal information you provide and informs you about your choices regarding use, access and correction of your personal information. Lloyd's is committed to ensuring that any personal data it receives is protected and handled in accordance with applicable data protection laws.

Consent to Collection:

By purchasing insurance or filing a claim on a policy issued by Lloyd's Underwriters in Canada, ("Lloyd's"), a customer provides Lloyd's with their consent to the collection, use and disclosure of personal information. Consent is subject to the customer's understanding of the nature, purpose, and consequences of the collection, use or disclosure of their personal information.

How we Collect Information:

We receive policy and claim information from sources such as: Lloyd's Coverholders, Lloyd's Managing Agents, insurance brokers, claims adjusters, and other insurance intermediaries.

What personal information we process about you and how it is used:

Information is collected and stored for the following purposes:

- the communication with Lloyd's policyholders
- the underwriting of policies
- the evaluation of claims
- the analysis of business results
- purposes required or authorized by law

We collect, process, and store the following personal information about you:

- Name
- Address including postal code and country
- Policy number
- Claim number
- Claim details

We also collect information about you when you visit www.lloyds.com . Further details can be found on our online Privacy & Cookies policy at [Privacy - Lloyd's \(lloyds.com\)](http://Privacy - Lloyd's (lloyds.com))

We will not use your personal information for marketing purposes, and we will not sell your personal information to other parties.

Who we disclose your information to:

For our general business administration, efficiency, and accuracy purposes, your personal information might be shared among certain Lloyd's offices. In order to properly manage the Lloyd's market and exercise certain supervisory powers, we may share your personal information with the Lloyd's Market Participants. For example, to successfully resolve any complaint, we will require all relevant information about your coverage and concerns.

To help manage our business and deliver services, we may share your personal information with third party service providers such as IT suppliers and business services. We require all our service providers to respect the confidentiality and security of personal data.

We may be under legal or regulatory obligations to share your personal data with Canadian courts, regulators, and law enforcement bodies.

Personal information collected by Lloyd's may be stored in several provinces within Canada, as well as sent for processing to Lloyd's offices in international locations such as the United States, the United Kingdom and the European Union. The collection, use and disclosure of personal information will be subject to the laws of those jurisdictions. By communicating personal information to us, for the purchase of insurance products or filing claims, you hereby consent to disclosing such personal information as may be required by the laws of that jurisdiction.

For the purposes described above, personal information may be disclosed to Lloyd's related or affiliated organisations or companies, their agents/mandataries, and to certain IT suppliers and business services providers. As some of these entities and Business Services Providers may be located outside of Canada, including in the United States of America or another foreign jurisdiction such as the United Kingdom and the European Union, the collection, use and disclosure of personal information will be subject to the laws of that jurisdiction. By communicating personal information to us, for the purchase of insurance products or filing claims, you hereby consent to these entities and Business Services Providers located outside of Canada to disclosing such personal information as required by the laws of that jurisdiction.

Use or disclosure without consent or further notification

Personal information may be used for a purpose other than those for which it was originally collected, without the consent, in the following situations:

- Legitimate business purposes: When it is necessary for the supply or delivery of a product or the provision of a service you have requested. We may also be required to share information to investigate allegations of fraud; where permitted or required by law; to protect and defend legal claims; and, at the request of government institutions in accordance with applicable laws.
- Interest of the individual: When it is clearly used for your benefit.
- Research, data analytics and AI. Only if it is used for purposes consistent with those it was collected, for study or research purposes, or for statistical purposes (where if the information has been de-identified).

Retention

We retain personal information for the purposes described above, for so long as is necessary to achieve those purposes. We will also retain information for so long as required by or regulatory obligations or by law.

Your rights

You have certain rights as an individual which you can exercise in relation to the information we hold about you. If you make a request to exercise any of your rights, we reserve the right to ask you for a proof of your identity. We aim to acknowledge your request as soon as possible and will address your query within one month from your request.

You have the following rights:

The right to access

You are entitled to a confirmation to how we are processing your data, a copy of your data, and information about the purposes of processing, who do we disclose it to, whether we transfer it abroad and how we protect it, how long we keep it for, what rights you have, where we got your data from and how you can make a complaint.

We may have to decline a request due to legal restrictions. This could include, but are not limited to:

- the information is subject to solicitor/client privilege,
- providing the information would reveal personal information about a third party, or
- providing the information could compromise the investigation of a claim.

The right to rectification

If you believe the personal information we hold about you is inaccurate or incomplete, you can request for it to be rectified.

The right to be forgotten

If you withdraw your consent, terminate a contract with us or you believe the personal information is no longer necessary for the purposes for which it was collected, you may request your data to be deleted. However, this will need to be balanced against other factors. For example, there may be certain regulatory obligations which may prevent us from completing your request.

The right to data portability

If we collected your information under a contract or your consent, you can request from us to transfer your personal information to provide it to another third party of your choice.

The right to withdraw consent

If we processed your personal information under your consent, you can withdraw consent to the communication or use of the information collected; assuming it is no longer needed for the purposes it was collected.

How to access your information and/or contact us

For further information about Lloyd's management of personal information or to request, access, corrections, deletion, or to make a complaint, please contact:

Lloyd's Underwriters
Attention: Nicole Seymour, Privacy Officer
Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930,
P.O. Box 51 Toronto, Ontario M5J 2J2
Tel: 1-416-360-1512
E-mail: LloydsCanada@lloyds.com

08/23
LSW1543E

AVIS CONCERNANT LES RENSEIGNEMENTS PERSONNELS

Introduction:

Le présent avis définit la manière dont Lloyd's Canada collecte, utilise, partage et conserve vos données personnelles et vous informe des choix qui s'offrent à vous en ce qui concerne l'utilisation, l'accès et la correction de vos renseignements personnels. Lloyd's Canada s'engage à garantir que toutes les données personnelles qu'elle reçoit soient protégées et traitées conformément aux lois en vigueur dans ce domaine.

Consentement à la collecte de données:

En souscrivant une assurance ou en présentant une demande d'indemnisation auprès des Souscripteurs du Lloyd's au Canada ("Lloyd's"), un client donne son consentement explicite au Lloyd's pour la collecte, l'utilisation et la divulgation de renseignements personnels. Un consentement est subordonné à la compréhension par le client de la nature, du but et des conséquences de la collecte, de l'utilisation ou de la communication de ses renseignements personnels.

Comment recueillons-nous l'information?

Nous recevons des renseignements sur les polices et les demandes d'indemnisation de sources telles que: les courtiers mandataires du Lloyd's, les agents de gestion du Lloyd's, les courtiers d'assurance, les experts en sinistres et d'autres intermédiaires d'assurance.

Quels sont les renseignements personnels que nous traitons et comment sont-ils utilisés?

Les renseignements sont recueillis et stockés aux fins suivantes :

- la communication avec les assurés du Lloyd's
- la souscription des polices du Lloyd's
- l'évaluation et le traitement des réclamations
- l'analyse des résultats de l'entreprise
- aux fins requises ou autorisées par la loi

Nous recueillons, traitons et stockons les renseignements personnels suivants à votre sujet :

- Nom
- Adresse, y compris le code postal et le pays
- Numéro de police
- Numéro de demande d'indemnisation
- Détails du dossier de demande d'indemnisation

Nous recueillons également des renseignements personnels à votre sujet lorsque vous visitez www.lloyds.com. Vous trouverez de plus amples informations sur notre politique en matière de cookies en ligne à l'adresse [Vie Privée - Lloyd's \(lloyds.com\)](#).

Nous n'utiliserons pas vos renseignements personnels à des fins de marketing et nous ne vendrons pas vos renseignements personnels à d'autres parties.

À qui divulguons-nous vos renseignements personnels?

Dans le cadre de nos activités générales d'administration et afin de garantir l'efficacité et l'exactitude, vos données personnelles peuvent être partagées avec certains bureaux du Lloyd's. Afin de bien gérer le marché du Lloyd's et d'exercer des pouvoirs de contrôle, nous pouvons partager vos renseignements personnels avec les participants du marché du Lloyd's. Par exemple, pour résoudre une plainte, nous aurons besoin de toutes les informations pertinentes concernant votre couverture et vos préoccupations.

Afin de nous aider à gérer nos activités et à offrir des services, nous pouvons partager vos renseignements personnels avec des fournisseurs de services tiers, tels que des fournisseurs de technologies de l'information et des services d'affaires. Nous exigeons que tous nos prestataires de services tiers préservent la confidentialité et la sécurité des données personnelles qui leur sont confiées.

Nous pouvons être soumis à des obligations légales ou réglementaires nous obligeant à partager vos données personnelles avec les tribunaux Canadiens, les régulateurs et les forces de l'ordre.

Les renseignements personnels recueillis par le Lloyd's peuvent être stockés dans plusieurs provinces canadiennes et être traités dans les bureaux du Lloyd's situés à l'extérieur du Canada, tels que les États-Unis, le Royaume-Uni et l'Union européenne. La collecte, l'utilisation et la divulgation des renseignements personnels sont soumises aux lois de ces juridictions. En souscrivant une assurance ou en déposant une demande d'indemnisation auprès de certains assureurs du Lloyd's, vous donnez votre consentement explicite au Lloyd's pour la collecte, l'utilisation et la divulgation de renseignements personnels, conformément à la législation en vigueur dans la juridiction concernée.

Pour les raisons énoncées ci-dessus, les renseignements personnels peuvent être divulgués aux organisations ou sociétés liées ou affiliées au Lloyd's, à leurs agents/mandataires, ainsi qu'à certains fournisseurs de technologies de l'information et prestataires de services aux entreprises. Puisque certains prestataires de services aux entreprises et entités se situent à l'extérieur du Canada, notamment aux États-Unis ou dans une autre juridiction étrangère telle que le Royaume-Uni et l'Union européenne, la collecte, l'utilisation et la divulgation des renseignements personnels seront assujetties aux lois de cette juridiction. En souscrivant une assurance ou en déposant une demande d'indemnisation, vous donnez votre consentement explicite au Lloyd's pour la collecte, l'utilisation et la divulgation de renseignements personnels, conformément à la législation en vigueur dans la juridiction concernée.

Utilisation ou divulgation sans consentement ou notification ultérieure

Les renseignements personnels peuvent être utilisés à des fins autres que celles pour lesquelles ils ont été recueillis à l'origine, sans le consentement du client, dans les situations suivantes :

- À des fins professionnelles légitimes: Lorsque qu'il est nécessaire à la distribution ou à la livraison d'un produit ou à la distribution d'un service que vous avez demandé. Nous pouvons également être tenus de partager des renseignements pour enquêter sur des allégations de fraude, lorsque la loi l'autorise ou l'exige, pour protéger et défendre des actions en justice et, à la demande d'institutions gouvernementales, conformément aux lois applicables.
- Pour l'intérêt de l'individu : Lorsque l'information est clairement utilisée pour votre bénéfice.
- À des fins de recherche, d'analyse de données et d'intelligence artificielle : Si les informations sont utilisées à des fins cohérentes avec celles pour lesquelles elles ont été collectées, à des fins d'étude ou de recherche, ou à des fins statistiques (lorsque les informations ont été dépersonnalisées).

Conservation

Pour les raisons indiquées ci-dessus, nous conservons les renseignements personnels aussi longtemps que nécessaire. Nous conserverons également l'information aussi longtemps que l'exigent les obligations réglementaires ou légales.

Vos droits

En tant qu'individu, vous disposez de certains droits que vous pouvez exercer en ce qui concerne les renseignements personnels que nous détenons à votre sujet. Si vous faites une demande pour exercer l'un de vos droits, nous nous réservons le droit de vous demander une preuve de votre identité. Nous nous efforçons d'accuser réception de votre demande dès que possible et de répondre à votre requête dans un délai d'un mois à compter de votre demande.

Vous disposez des droits suivants:

Le droit d'accès

Vous avez le droit d'obtenir une confirmation sur la manière dont nous traitons vos données, une copie de vos données personnelles et des informations sur les fins de traitement, à qui nous divulguons vos données, si nous les transférons à l'étranger et comment nous les protégeons, pendant combien de temps nous les conservons, les droits dont vous disposez, d'où proviennent vos données et comment vous pouvez déposer une plainte.

Nous pouvons refuser une demande en raison de restrictions légales. Ces restrictions peuvent inclure, entre autres, ce qui suit :

- l'information est confidentielle et est soumise au secret professionnel,
- la divulgation de l'information révélerait des renseignements personnels au sujet d'un tiers, ou
- la divulgation de l'information pourrait compromettre l'enquête d'une demande d'indemnisation.

Le droit de rectification

Vous avez le droit de nous demander de rectifier des données personnelles que vous jugez inexactes ou incomplètes.

Le droit de suppression

Si vous retirez votre consentement, si vous mettez fin à un contrat avec nous ou si vous jugez que les renseignements personnels ne sont plus nécessaires aux fins pour lesquelles ils ont été recueillis, vous pouvez demander que vos données soient supprimées. Toutefois, cela devra être évalué en fonction d'autres facteurs. Par exemple, certaines obligations réglementaires peuvent nous empêcher de mener à bien votre demande.

Le droit à la portabilité des données

Si nous avons recueilli vos renseignements en vertu d'un contrat ou de votre consentement, vous avez le droit de demander que nous transférions les données personnelles que vous nous avez fournies à une autre organisation de votre choix.

Le droit de retirer son consentement

Si nous avons traité vos renseignements personnels avec votre consentement, vous avez le droit de retirer votre consentement à la communication ou à l'utilisation des informations collectées, à condition qu'elles ne soient plus nécessaires aux fins pour lesquelles elles ont été recueillies.

Comment accéder à vos renseignements personnels et/ou nous contacter

Pour de plus amples informations sur la gestion des renseignements personnels par le Lloyd's, pour demander l'accès, la correction ou la suppression de ces renseignements, ou encore pour déposer une plainte, veuillez contacter:

Les Souscripteurs du Lloyd's

À l'attention de: Nicole Seymour, Responsable de la protection des renseignements personnels

Royal Bank Plaza South Tower, 200 Bay Street, Suite 2930,

P.O. Box 51 Toronto, Ontario M5J 2J2

Tél: 1-416-360-1512

Courriel: LloydsCanada@lloyds.com

08/23

LSW1543E-16

CODE OF CONSUMER RIGHTS AND RESPONSIBILITIES - LSW1565C

Insurers (including Lloyd's Underwriters), along with the brokers and agents who sell home, auto and business insurance are committed to safeguarding your rights both when you shop for insurance and when you submit a claim following a loss. Your rights include the right to be informed fully, to be treated fairly, to timely complaint resolution, and to privacy. These rights are grounded in the contract between you and your insurer and the insurance laws of your province. With rights, however, come responsibilities including, for example, the expectation that you will provide complete and accurate information to your insurer. Your policy outlines other important responsibilities. Insurers and their distribution networks, and governments also have important roles to play in ensuring that your rights are protected.

Right to Be Informed

You can expect to access clear information about your policy, your coverage, and the claims settlement process. You have the right to an easy-to-understand explanation of how insurance works and how it will meet your needs. You also have a right to know how insurers calculate price based on relevant facts. Under normal circumstances, insurers will advise an insurance customer or the customer's intermediary of changes to, or the cancellation of a policy within a reasonable prescribed period prior to the expiration of the policy, if the customer provides information required for determining renewal terms of the policy within the time prescribed, which could vary by province, but is usually 45 days prior to expiry of the policy.

You have the right to ask who is providing compensation to your broker or agent for the sale of your insurance. Your broker or agent will provide information detailing for you how he or she is paid, by whom, and in what ways.

You have a right to be told about insurers' compensation arrangements with their distribution networks. You have a right to ask the broker or agent with whom you deal for details of how and by whom it is being paid. Brokers and agents are committed to providing information relating to ownership, financing, and other relevant facts.

Responsibility to Ask Questions and Share Information

To safeguard your right to purchase appropriate coverage at a competitive price, you should ask questions about your policy so that you understand what it covers and what your obligations are under it. You can access information through one-on-one meetings with your broker or agent. You have the option to shop the marketplace for the combination of coverages and service levels that best suits your insurance needs. To maintain your protection against loss, you must promptly inform your broker or agent of any change in your circumstances.

Right to Complaint Resolution

Insurers, their brokers and agents are committed to high standards of customer service. If you have a complaint about the service you have received, you have a right to access Lloyd's Underwriters' complaint resolution process for Canada. Your agent or broker can provide you with information about how you can ensure that your complaint is heard and promptly handled. Consumers may also contact their respective provincial insurance regulator for information. Lloyd's is a member of an independent complaint resolution office, the General Insurance OmbudService.

Responsibility to Resolve Disputes

You should always enter into the dispute resolution process in good faith, provide required information in a timely manner, and remain open to recommendations made by independent observers as part of that process.

Right to Professional Service

You have the right to deal with insurance professionals who exhibit a high ethical standard, which includes acting with honesty, integrity, fairness and skill. Brokers and agents must exhibit extensive knowledge of the product, its coverages and its limitations in order to best serve you.

Right to Privacy

Because it is important for you to disclose any and all information required by an insurer to provide the insurance coverage that best suits you, you have the right to know that your information will be used for the purpose set out in the privacy statement made available to you by your broker, agent or insurance representative. This information will not be disclosed to anyone except as permitted by law. You should know that Lloyd's Underwriters are subject to Canada's privacy laws - with respect to their business in Canada.

CODE DES DROITS ET RESPONSABILITÉS DU CONSOMMATEUR - LSW1565C-16

Les assureurs (y compris les Souscripteurs du Lloyd's), de même que les courtiers et agents qui font souscrire des polices d'assurance habitation, automobile et entreprise, tiennent à protéger vos droits tant que lorsque vous cherchez une assurance que lorsque vous présentez une demande d'indemnité à la suite d'un sinistre. Vous avez notamment droit à une information complète, à un traitement équitable, à un règlement diligent de vos plaintes et à la protection des renseignements personnels qui vous concernent. Ces droits sont fondés sur le contrat conclu entre vous et votre assureur et sur les lois de votre province en matière d'assurance. Cependant, les droits s'accompagnent de responsabilités. On s'attend par exemple à ce que vous fournissiez des renseignements complets et exacts à votre assureur. D'autres responsabilités importantes sont décrites dans votre police. Les assureurs et leurs réseaux de distribution ainsi que les gouvernements ont également un rôle important dans la protection de vos droits.

Droit d'être informé

Vous pouvez vous attendre à des renseignements clairs sur votre police, votre protection et le processus de règlement des sinistres. Vous avez droit à des explications claires sur le fonctionnement de l'assurance et la façon dont elle répond à vos besoins. Vous avez également le droit de savoir comment les assureurs calculent le prix à partir de faits pertinents. Normalement, les assureurs donnent au client ou à son intermédiaire un préavis raisonnable (dont la durée est fixée par la loi) du non-renouvellement de son assurance ou des modifications prenant effet au renouvellement pourvu que le client fournisse les renseignements nécessaires à l'établissement des conditions de renouvellement au moins 45 jours (ou le nombre de jours fixé dans la loi) avant l'expiration du contrat.

Vous avez le droit de demander qui rémunère votre courtier ou agent pour la souscription de votre assurance. Votre courtier ou agent vous expliquera comment il est rémunéré, par qui et sous quelles formes.

Vous avez le droit de connaître les ententes de rémunération conclues par les assureurs avec leurs réseaux de distribution. Vous avez le droit de demander à votre courtier ou agent de vous expliquer comment et par qui il est payé. Les courtiers et les agents doivent fournir les renseignements concernant la propriété, le financement et autres faits pertinents.

Responsabilité de poser des questions et de fournir des renseignements

Pour protéger votre droit à la souscription d'une assurance appropriée à un prix concurrentiel, vous devez poser des questions sur votre police afin de comprendre la protection qu'elle vous procure et les obligations qu'elle vous impose. Vous pouvez obtenir des renseignements dans le cadre de rencontres en tête-à-tête avec votre courtier ou agent. Vous êtes libre de faire le tour du marché de manière à obtenir la combinaison de garanties et de services qui répond le mieux à vos besoins. Pour conserver votre protection contre les sinistres, vous devez informer sans délai votre courtier ou agent de tout changement dans votre situation.

Droit au règlement des plaintes

Les assureurs, leurs courtiers et leurs agents s'imposent des normes élevées en matière de service à la clientèle. Si vous avez à vous plaindre du service que vous avez reçu, vous avez le droit de recourir au processus de règlement des plaintes des Souscripteurs du Lloyd's pour le Canada. Votre courtier ou agent peut vous expliquer ce que vous devez faire pour que votre plainte soit entendue et traitée rapidement. Les consommateurs peuvent aussi consulter l'autorité de réglementation de l'assurance de leur province. Le Lloyd's est membre d'un organisme de règlement des plaintes indépendant, le Service de conciliation en assurance de dommages."

Responsabilité de régler les différends

Vous devez toujours vous engager de bonne foi dans le processus de règlement des différends, fournir promptement les renseignements demandés et être ouvert aux recommandations formulées par des observateurs indépendants dans le cadre de ce processus.

Droit à un service professionnel

Vous avez le droit de traiter avec des professionnels de l'assurance qui observent des normes déontologiques rigoureuses et agissent avec honnêteté, intégrité, équité et compétence. Les courtiers et agents d'assurance doivent démontrer une connaissance approfondie du produit, de ses garanties et de ses restrictions afin de vous offrir un service optimal.

Droit à la protection des renseignements personnels

Étant donné qu'il est important que vous communiquiez à l'assureur tous les renseignements dont il a besoin pour vous fournir la protection qui vous convient le mieux, vous avez le droit de savoir que les renseignements qui vous concernent seront utilisés uniquement aux fins décrites dans l'énoncé sur la protection des renseignements personnels mis à votre disposition par votre courtier, agent ou représentant d'assurance. Ces renseignements ne seront communiqués à des tiers que dans la mesure où la loi le permet. Vous devez savoir que, en ce qui concerne leurs affaires canadiennes, les Souscripteurs du Lloyd's sont assujettis aux lois canadiennes régissant la protection des renseignements personnels.

SEVERAL LIABILITY NOTICE

The subscribing insurer's obligations under contracts of insurance to which they subscribe are several and not joint and are limited solely to the extent of their individual subscriptions. The subscribing insurers are not responsible for the subscription of any co-subscribing insurer who for any reason does not satisfy all or part of its obligations.

LSW1001 (Insurance)

COMMUNICABLE DISEASE EXCLUSION

(For use on liability policies)

1. Notwithstanding any provision to the contrary within this policy, this policy does not cover all actual or alleged loss, liability, damage, compensation, injury, sickness, disease, death, medical payment, defence cost, cost, expense or any other amount, directly or indirectly and regardless of any other cause contributing concurrently or in any sequence, originating from, caused by, arising out of, contributed to by, resulting from, or otherwise in connection with a Communicable Disease or the fear or threat (whether actual or perceived) of a Communicable Disease.

2. For the purposes of this endorsement, loss, liability, damage, compensation, injury, sickness, disease, death, medical payment, defence cost, cost, expense or any other amount, includes, but is not limited to, any cost to clean-up, detoxify, remove, monitor or test for a Communicable Disease.

3. As used herein, a Communicable Disease means any disease which can be transmitted by means of any substance or agent from any organism to another organism where: 3.1. the substance or agent includes, but is not limited to, a virus, bacterium, parasite or other organism or any variation thereof, whether deemed living or not, and 3.2. the method of transmission, whether direct or indirect, includes but is not limited to, airborne transmission, bodily fluid transmission, transmission from or to any surface or object, solid, liquid or gas or between organisms, and 3.3. the disease, substance or agent can cause or threaten bodily injury, illness, emotional distress, damage to human health, human welfare or property damage.

LMA5396
17 April 2020

SANCTION LIMITATION CLAUSE (LMA 3100A)

No (re)insurer shall be deemed to provide cover and no (re)insurer shall be liable to pay any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose that (re)insurer to any sanction, prohibition or restriction under United Nations' resolutions or the trade or economic sanctions, laws or regulations of the European Union, United Kingdom or United States of America.

LMA3100A
5 October 2023

LINE CLAUSE - NMA2419

This Insurance, being signed for 100% of 100% insures only that proportion of any loss, whether total or partial, including but not limited to that proportion of associated expenses, if any, to the extent and in the manner provided in this insurance.

The percentages signed in the Table are percentages of 100% of the amount(s) of Insurance stated herein.

CYBER AND DATA EXCLUSION
(for attachment to Canadian Liability forms)

1. Notwithstanding any provision to the contrary within this Policy or any endorsement thereto this Policy does not apply to any loss, damage, liability, claim, fines, penalties, cost or expense of whatsoever nature directly or indirectly caused by, contributed to by, resulting from, arising out of or in connection with any:

1.1 CYBER ACT or CYBER INCIDENT including, but not limited to, any action taken in controlling, preventing, suppressing or remediating any CYBER ACT or CYBER INCIDENT;

1.2 loss of use, reduction in functionality, repair, replacement, restoration, reproduction, loss or theft of any DATA, including any amount pertaining to the value of such DATA; or

1.3 complaint, investigation, or proceedings arising directly or indirectly from a breach or alleged breach of the Personal Information Protection and Electronic Documents Act, the Canada Anti-Spam Legislation, any Privacy Act, or any similar Canadian, Provincial or Territorial statute or regulation, regardless of any other cause or event contributing concurrently or in any other sequence thereto.

2. In the event any portion of this endorsement is found to be invalid or unenforceable, the remainder shall remain in full force and effect.

Definitions

COMPUTER SYSTEM means any computer, hardware, software, communications system, electronic device (including, but not limited to, smart phone, laptop, tablet, wearable device), server, cloud or microcontroller including any similar system or any configuration of the aforementioned and including any associated input, output, data storage device, networking equipment or back up facility, owned or operated by the Insured or any other party.

+A2359CYBER ACT means an unauthorised, malicious or criminal act or series of related unauthorised, malicious or criminal acts, regardless of time and place, or the threat or hoax thereof involving access to, processing of, use of or operation of any COMPUTER SYSTEM.

CYBER INCIDENT means:

- (a) any error or omission or series of related errors or omissions involving access to, processing of, use of or operation of any COMPUTER SYSTEM; or
- (b) any partial or total unavailability or failure or series of related partial or total unavailability or failures to access, process, use or operate any COMPUTER SYSTEM.

DATA means information, facts, concepts, code or any other information of any kind that is recorded or transmitted in a form to be used, accessed, processed, transmitted or stored by a COMPUTER SYSTEM.

LMA5528A
15 March 2023

3 – Standard Endorsements

The Statutory Conditions contained herein shall supersede, supplement or add to any existing conditions contained within this policy and are applicable to the Provinces of British Columbia, Alberta and Manitoba according to law.

STATUTORY CONDITIONS (Applicable to British Columbia, Alberta and Manitoba)

Property of others

1. The insurer is not liable for loss or damage to property owned by a person other than the insured unless
 - (a) otherwise specifically stated in the contract, or
 - (b) the interest of the insured in that property is stated in the contract.

Change of interest

2. The insurer is liable for loss or damage occurring after an authorized assignment under Bankruptcy and Insolvency Act (Canada) or a change of title by succession, by operation of law or by death.

Material change in risk

3.
 - (1) The insured must promptly give notice in writing to the insurer or its agent of a change that is
 - (a) material to the risk, and
 - (b) within the control and knowledge of the insured.
 - (2) If an insurer or its agent is not promptly notified of a change under subparagraph (1) of this condition, the contract is void as to the part affected by the change.
 - (3) If an insurer or its agent is notified of a change under subparagraph (1) of this condition, the insurer may
 - (a) terminate the contract in accordance with Statutory Condition 5, or
 - (b) notify the insured in writing that, if the insured desires the contract to continue in force, the insured must, within 15 days after receipt of the notice, pay to the insurer an additional premium specified in the notice.
 - (4) If the insured fails to pay an additional premium when required to do so under subparagraph (3)(b) of this condition, the contract is terminated at that time and Statutory Condition 5(2)(a) applies in respect of the unearned portion of the premium.

Termination of insurance

4.
 - (1) The contract may be terminated
 - (a) by the insurer giving to the insured 60 days' notice of termination by registered mail or 15 days' notice of termination by registered mail for non-payment of premium due or 5 days' written notice of termination personally delivered, or
 - (b) by the insured at any time on request.
 - (2) If the contract is terminated by the insurer,
 - (a) the insurer must refund the excess of premium actually paid by the insured over the prorated premium for the expired time, but in no event may the prorated premium for the expired time be less than any minimum retained premium specified in the contract, and
 - (b) the refund must accompany the notice unless the premium is subject to adjustment or determination as to amount, in which case the refund must be made as soon as practicable.
 - (3) If the contract is terminated by the insured, the insurer must refund as soon as practicable the excess of premium actually paid by the insured over the short rate premium for the expired time specified in the contract, but in no event may the short rate premium for the expired time be less than any minimum retained premium specified in the contract.
 - (4) The 15 day period referred to in subparagraph (1)(a) of this condition starts to run on the day the registered letter or notification of it is delivered to the insured's postal address.

Notice

- (1) Written notice to the insurer may be delivered at, or sent by registered mail to, the chief agency or head office of the insurer in the province.

(2) Written notice to the insured may be personally delivered at, or sent by registered mail addressed to, the insured's last known address as provided to the insurer by the insured.

BLANKET ADDITIONAL INSURED

It is hereby agreed that any owner, person, firm, organization, trustee, estate or governmental entity to whom or to which the Named Insured has contracted to effect insurance by virtue of a contract of agreement or by the issuance or existence of a permit. But the insurance provided for such additional insured is restricted to apply solely to liability arising out of operations performed under said contract and only to the extent required by such contract;

Where the Broker of record has issued a certificate of insurance and filed a copy of a certificate of insurance no later than fourteen (14) days following the date of issue, notice in the event of cancellation or a material change, not exceeding 30 days, shall be granted to the address of the certificate holder as shown on the certificate of insurance.

BLANKET WAIVER OF SUBROGATION

With respect to liability arising out of the operations of the insured, the Insurer agrees to waive its rights of subrogation that it may have under this policy provided that:

The Insured has similarly waived such rights of subrogation in a contract or agreement that has been entered into in writing prior to the occurrence giving rise to a claim; and

The waiver shall apply only in favour of the person, firm, corporation, government body or entity named.

At all times Underwriters retain the right to seek recourse against in the event of any alleged wrongful information provided to the Insured and/or contributory act of negligence.

All other policy terms, conditions, provisions, definitions and exclusions shall remain unchanged.

MINIMUM EARNED PREMIUM / COMMISSION CLAUSE

In consideration of the premium charged, it is agreed that in the event of cancellation of this insurance by the Named Insured, return premium shall be computed in accordance with the conditions attached herein, subject however to a retention by Underwriters of not less than the minimum retained of the annual premium as stated on the declaration page of this policy.

The commission will be deemed to be fully earned commission, earned in full at inception by the London Broker, and will be subtracted from any return premium due.

Nothing in this statement is deemed to affect the Underwriters' cancellation rights, as described more fully herein.

FRAUDULENT CLAIM CLAUSE

If the (re)insured shall make any claim knowing the same to be false or fraudulent, as regards amount or otherwise, this contract shall become void and all claim hereunder shall be forfeited.

CROSS LIABILITY CLAUSE

In the event of claim by one Insured for which another Insured covered by the same policy may be held liable, this endorsement covers the Insured against whom the claim is made in the same manner as if separate policies had been issued. However, it does not operate to increase the Insurer's overall limit of liability.

SHORT RATE CANCELLATION TABLE

Notwithstanding anything to the contrary contained herein and in consideration of the premium for which this Insurance is written it is agreed that in the event of cancellation thereof by the **Insured** the Earned Premium shall be computed as follows:

SHORT RATE CANCELLATION TABLE

A. For insurances written for one year:

Days Insurance in Force	Per cent. of One Year Premium	Days Insurance in Force	Per cent. of One Year Premium
1 - 73	30	206 - 209	66
74 - 76	31	210 - 214 (7 months)	67
77 - 80	32	215 - 218	68
81 - 83	33	219 - 223	69
84 - 87	34	224 - 228	70
88 - 91 (3 months)	35	229 - 232	71
92 - 94	36	233 - 237	72
95 - 98	37	238 - 241	73
99 - 102	38	242 - 246 (8 months)	74
103 - 105	39	247 - 250	75
106 - 109	40	251 - 255	76
110 - 113	41	256 - 260	77
114 - 116	42	261 - 264	78
117 - 120	43	265 - 269	79
121 - 124 (4 months)	44	270 - 273 (9 months)	80
125 - 127	45	274 - 278	81
128 - 131	46	279 - 282	82
132 - 135	47	283 - 287	83
136 - 138	48	288 - 291	84
139 - 142	49	292 - 296	85
143 - 146	50	297 - 301	86
147 - 149	51	302 - 305 (10 months)	87
150 - 153 (5 months)	52	306 - 310	88
154 - 156	53	311 - 314	89
157 - 160	54	315 - 319	90
161 - 164	55	320 - 323	91
165 - 167	56	324 - 328	92
168 - 171	57	329 - 332	93
172 - 175	58	333 - 337 (11 months)	94
176 - 178	59	338 - 342	95
179 - 182 (6 months)	60	343 - 346	96
183 - 187	61	347 - 351	97
188 - 191	62	352 - 355	98
192 - 196	63	356 - 360	99
197 - 200	64	361 - 365 (12 months)	100
201 - 205	65		

B. For Insurances written for more or less than one year:

1. If insurance has been in force for 12 months or less, apply the standard short rate table for annual insurances to the full annual premium determined as for an insurance written for a term of one year.
2. If insurance has been in force for more than 12 months:
 - (a) Determine full annual premium as for an insurance written for a term of one year.
 - (b) Deduct such premium from the full insurance premium, and on the remainder calculate the pro rata Earned Premium on the basis of the ratio of the length of

time beyond one year the insurance has been in force to the length of time beyond one year for which the insurance was originally written.

- (c) Add premium produced in accordance with items (a) and (b) to obtain Earned Premium during full period insurance has been in force.

Furthermore and notwithstanding the foregoing, the Underwriters shall retain the total premium for this Policy, such total premium to be deemed earned upon inception of the Policy if any **Claim** or **Circumstance** is reported to the Underwriters under this Policy on or before such date of cancellation.